

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

EARLEAN EDWARDS DUKART, *Complainant*

v.

OCEAN STAR INTERNATIONAL INC.,
D/B/A INTERNATIONAL VAN LINES, *Respondent*.

DOCKET NO. 20-03

Served: April 14, 2020

BEFORE: Erin M. WIRTH, *Chief Administrative Law Judge*

STATUS REPORT

Efforts to comply with the Initial Order commenced March 2, 2020. CADRS was contacted, the complaint was reviewed, Complainant agreed to mediation. The initial response was to acquire confirmation with superiors as to whether or not the recent modifications of section 41102(c) would have a bearing on the matter, specifically should the matter be moved to civil courts.

Closures and Stay at Home Mandates prevented the allotment of time for this matter to be presented as discussed. Complainant was advised that a secondary mediator would make contact. Several unsuccessful attempts were by made Complainant to initiate communication to comply with meeting to confer with respondents. On March 11, 2020 no responses had been received, a request was send to provide advice on moving forward with respect to aforementioned deadlines and Initial Order compliance. The final information that was received on March 13, 2020 stated that Respondents did not agree to mediation. Anticipation that the secondary mediator facilitates the meeting to carry out the Initial Orders leaves Complainant at a loss for the proper method to proceed. Complainant respectfully apologizes for the ignorance.

Complainant is aware of the additional notice of appearance. Complainant is willing to confer with Respondents/ legal counsel as per the Order to Brief Motion to Dismiss.

As the foundation of this entire case is based on Respondent's failure to meet any of the terms agreed upon, the issuance of a bill of lading never occurred to establish the insurance valuation and purchase. At the time of the move Complainants personal homeowners insurance provided some coverage, however that coverage expired before the release of belongings by Respondents. No claims against Respondents insurance or the bond on file have been made. In

accordance to Respondents' position of not even having been hired to perform the scheduled move, making such claims result in conflict.

In respect to additional information to submit, Respondents response included a statement that another company handled the shipment. As this just another attempt to bend the truth to deny accountability. Included is a statement received from said company- Baron Worldwide, confirming they did not perform any services. Although the email incorrectly states that a container was positioned, Complainant was advised that some charges would possibly be incurred for the efforts and reservations that had been made thus far.

The Respondents responses do not reflect the truth. Seeking justice and accountability based on facts, Complainant again requests a continuation of these proceedings. As the current global pandemic ensues, Complainant is currently in a country that has declared a state of emergency and has closed all borders for travel. Complainant additionally requests that this factor be taken into account with respect to deadlines that require Complainant to be physically present.



Dated April 14, 2020

Earlean Edwards Dukart
c/o Lula Greene
61 Overlook Dr.
Oakdale, PA 15107

(813) 205 - 6109
EarleanDukart@comcast.net

From: Dawne H. dawne@baronworldwide.com 
Subject: RE: Statement Confirmation
Date: March 1, 2020 at 6:16 PM
To: Earlean Edwards Dukart earleandukart@comcast.net



I'm sorry, we did not perform any services for you.

We currently have a past due balance due from you for the container we positioned at the storage unit but had to return empty.

Thank you for removing me from any future correspondence regarding this matter.

Thank you and make it a wonderful day!

Mrs. Dawne Harris
International Team Lead

CORPORATE OFFICE:
7009 S. Jordan Road
Centennial, Colorado 80112
Direct: 1.303.785.4352
Office hours: 7:00am - 3:30pm (central)
dawne@baronworldwide.com
<http://www.baronworldwide.com/>
FMC license: 023094F

Privacy Statement:

The information contained in this message, and any attachments thereto, is intended solely for the use of the addressee(s) and may contain confidential and/or privileged material. Any review, retransmission, dissemination, copying, or other use of the transmitted information is prohibited. If you received this in error, please contact the sender and delete the material from any computer.

*For more information about our privacy policy including Anti-Bribery Anti-Corruption Charter and Environmental care please go to <http://www.baronworldwide.com>.

-----Original Message-----

From: Earlean Edwards Dukart <earleandukart@comcast.net>
Sent: Friday, February 28, 2020 9:10 AM
To: Dawne Harris <dharris@johnson-united.com>
Subject: Statement Confirmation

Dawne,

Please, can you take a moment to review the following and respond to me confirming or denying that this is your statement?
Thank you
Earlean Dukart
wnw

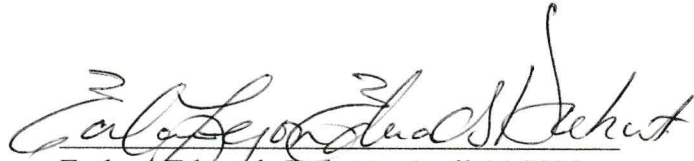
CERTIFICATE OF SERVICE

I hereby certify that on April 14, 2020, I served a true and correct copy of the following document: STATUS REPORT as an attachment, by electronic mail delivered to:

AWCraig@Venable.com

WSSudduth@Venable.com

I declare under penalty of perjury that the foregoing is true and correct.



Earlean Edwards Dukart April 14, 2020